

JUSTIFICATION REVIEW DOCUMENT
FAR 8.405-6 LIMITED SOURCES JUSTIFICATION UNDER THE
GENERAL SERVICES ADMINISTRATION FEDERAL SUPPLY
PROGRAM

Program/Equipment: The U.S. Army Aviation and Missile Command (AMCOM) Security Assistance Management Directorate (SAMD) - Product Assurance, Production Engineering, Systems Engineering, Test and Evaluation, Technical Data Management and Product Assurance and Engineering Support Services (EXPRESS) Technical Domain.

Authority: Title III of the Federal Property and Administrative Services Act of 1949 (41 U.S.C. 251, et. Seq) and Title 40 U.S.C 501, Services for Executive Agencies, as implemented by FAR 8.405-6(a)(1)(i)(C). In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule (FSS) order provided that the original order was placed in accordance with applicable FSS ordering procedures. The original order or Blanket Purchase Agreement (BPA) was not previously issued under sole-source or limited sources procedures.

Amount: [REDACTED]

Prepared by: [REDACTED] Phone: [REDACTED]
Contracting Officer's Representative Date: 06 Feb 25
Email: [REDACTED]

Contracting Officer [REDACTED] Phone: [REDACTED]
Contracting Officer Date: 06 Feb 25
Email: [REDACTED]

Technical: [REDACTED] Phone: [REDACTED]
Logistics Management Specialist Date: 06 Feb 25
Email: [REDACTED]

Requirements: [REDACTED] Phone: [REDACTED]
Project Manager Date: 06 Feb 25
Non-Standard Missile Directorate Email: [REDACTED]

Controlled by: [REDACTED]
Controlled by: [REDACTED]
Category: [REDACTED]
Limited Dissemination Control: [REDACTED]
POC: [REDACTED]

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Legal Counsel:

Typed Name: [Redacted] DSN: [Redacted]

Signature [Redacted] Date: _____

Command Advocate for Competition:

Typed Name: [Redacted] DSN: [Redacted]

Signature: [Redacted] _____

**FAR 8.405-6 LIMITED SOURCES
JUSTIFICATION UNDER THE GENERAL
SERVICES ADMINISTRATION FEDERAL
SUPPLY SCHEDULE PROGRAM**

1. Contracting Activity: Department of the Army, Army Contracting Command-Redstone Arsenal (ACC-RSA), CCAM- ESB, Redstone Arsenal, AL 35898-5000.

2. Description of Action: AMCOM, SAMD requests approval to award a contract modification, non-competitively, to Torch Technologies, Inc. (further referred to as Torch), [REDACTED] Commercial and Government Entity (CAGE) Code: 3CBV3, FSS GS-23F-0321N, under the Expedited Professional Engineering Support Services (EXPRESS) Program BPA GS-23F-0321N Task Order (TO) W31P4Q-23-F-B002 P00020. Pursuant to ACC-RSA Acquisition Instruction – Annex A, the HCA has delegated this function to the ACC-RSA Senior Contracting Official (SCO). SAMD requests approval to issue a new contract modification to increase hours and ceiling. The not-to-exceed ceiling amount on the TO is \$ [REDACTED]. The current total obligation amount is \$ [REDACTED] and with new requirements, the ceiling needs to be increased to \$ [REDACTED], which leaves a remaining not to exceed ceiling balance of \$ [REDACTED]. The estimated amount for the ceiling increase is \$ [REDACTED]. The estimated labor hours for this increase are from [REDACTED] to [REDACTED]. The original award was hybrid firm fixed priced (FFP) and time and material (T&M) requirement, the type of award is not changing. The current funding available for this effort will be Foreign Military Sales (FMS) Case Funds as well as [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

3. Description of Supplies/Services: This TO is to provide Technical Support Services in monitoring, assessing, coordinating, analyzing and integrating component programs and activities in SAMD. SAMD's mission is to provide aviation and missile weapon system support to US foreign allies. SAMD has a requirement for technical support to meet contractual obligations for the procurement, delivery, and sustainment of systems entered into via the FMS process between the U.S. Government (USG) and numerous foreign governments. This includes the technical support requirements for the SAMD managed missile weapon systems, their associated support/test equipment, and repairable secondary items. The requested modifications to the TO allow continuous support of technical support services in the areas of Product Assurance, Production Engineering, Systems Engineering, Test and Evaluation, Technical Data Management, and Product Assurance. A summary of the actions covered by this Limited Sources Justification (LSJ) is provided below:

	Period of Performance	Labor FFP	Travel	ODCs	Hours	Subtotal
Remainder Option 2	8/26/24-8/25/25	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
Option 3	8/26/25-8/25/26	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
Option 4	8/26/26-8/25/27	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
6 Month Extension	8/26/27-2/25/28	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
Total		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

4. Authority Cited: Title III of the Federal Property and Administrative Services Act of 1949 (41 U.S.C. 251, et. Seq) and Title 40 U.S.C 501, Services for Executive Agencies, as implemented by FAR 8.405-6(a)(1)(i)(C) Limiting Sources. In the interest of economy and efficiency, the new work is a logical follow-on to an original FSS order provided that the original order was placed in accordance with applicable FSS ordering procedures. The original order or BPA was not previously issued under sole-source or limited-sources procedures.

5. Reason for Authority Cited: This Limited Source Justification (LSJ) regarding Torch, [REDACTED] Commercial and Government Entity (CAGE) Code: 3CBV3, Federal Supply Schedule (FSS) GS-23F-0321N supports the authority cited above in this LSJ is to increase hours and ceiling. This ceiling increase is needed due to the unforeseen increase in Foreign Military Sales (FMS), in particularly the increase in Foreign Military Sales to [REDACTED]. While this is a continuation of the same, already existing effort/scope, which was placed in accordance with the applicable FSS ordering procedures, there has been an increase in effort/scope due to the continuing conflicts and partner nations' requests for additional support. The original Task Order of GS-23F-0321N TO W31P4Q-23-F-B002 was competitively awarded using a Small Business Set-Aside on 13 January 2023 for a period of five years, through 12 January 2028, as a Firm-Fixed-Price, Time and Material Level of Effort Contract. Due to ongoing actions within [REDACTED] the Program Office has had a substantial increase in workload. The Ukraine conflict has continued for three years, the duration and extensive workload requirements were unknown at the time of award of this contract. SAMD is fielding numerous HAWK Fire Units, which require substantial man hours and technical support to the field. SAMD does not have the Table of Distribution and Allowances (TDA) positions or expertise to meet these requirements. If this ceiling increase is not approved, there will be a degradation of support capabilities and failure to perform the Performance Work Statement (PWS) requirements, in support of the HAWK Project Office and will hinder SAMD's support to our foreign allies. Therefore, it is not efficient to award this action to a new contractor. The ceiling increase will be needed throughout duration of the Task Order as SAMD will still be required to provide sustainment support for the [REDACTED] HAWK systems. Torch also provides program sustainment support for the [REDACTED] Chu-SAM system, and the [REDACTED] Chaparral system. Torch will also likely provide sustainment support to the Avenger and Patriot Missile System during this contract. Torch's past performance within this requirement has shown their ability to provide the unique skillsets and experience required to execute the requirements detailed in the PWS. Torch currently provides highly specialized technical support services by providing technical expertise in support of the performance of

life cycle producibility and systems engineering analysis to ensure material production capabilities for the Chaparral, HAWK and other SAMD supported missile systems. This support also includes design, development, and delivery of prototype modification kits in support of FMS-altered end item requirements. Additionally, Torch's technical expertise provides for the evaluation of alternative system/subsystem components to determine their suitability for use as replacements for unavailable/obsolete items required by foreign military customers. Moreover, Torch possesses the applicable working knowledge of [REDACTED] regulations, processes, and procedures associated with FMS. The impact to foreign allies to try to increase the existing TDA to add government positions would result in costly delays and the inability to provide support to FMS customers. As stated above, the reason to raise the ceiling is the unforeseen surge in contractor support needed after award of the TO due to the [REDACTED] mission, which has increased the workload within SAMD; and due to the continuation of sustainment support for the [REDACTED]; the sustainment support for the Japan Chu-SAM system, and the [REDACTED]; and the future support to the Avenger and Patriot Missile System during this contract.

Alternatives: Suspend Operations: Currently, if this LSJ to increase hours and ceiling is not granted, there are no other alternatives except to suspend operations. As previously mentioned, failure to provide expert technical support for FMS customers will negatively impact SAMD's mission. SAMD has legally binding international agreements for the procurement, particularly delivery and sustainment of AMCOM systems entering via the FMS process between the USG and numerous foreign governments. This LSJ to increase hours and ceiling is critical to continuing to meet US allies' defense needs and ongoing FMS technical activities. If a lapse of service is experienced, it will force the immediate withdrawal of contractor personnel from critical missions and impact contractor technical services to multiple countries/missions, damaging the current foreign relations and programs operating under this TO. It is anticipated that without the approval of this LSJ to increase hours and ceiling, there will be a significant break in service. The impact of any break in service incurred by these foreign countries and programs could be damaging to foreign military safety as these technical services are intimately supporting FMS sales and the foreign countries' ability to purchase the products and support, they need for their defense. As these services are directly related to the ongoing foreign relationships throughout the world, the USG cannot entertain the possibility of losing these relationships. As a result, the suspension of operations is not a viable alternative. The functions procured under this TO are specialized and the USG does not possess the staff to provide support. The use of in-house personnel/expertise is not an option, there are simply not enough qualified USG personnel to perform the services delineated in the PWS.

6. Efforts to Obtain Competition: The current TO was competitively awarded as a small business set-aside on 13 January 2023. It is not feasible to utilize another source for this ceiling increase since Torch currently has the TO within SAMD for programmatic support. There are no efforts to obtain competition for this extension at the current time. In accordance with FAR 8.404(a), this action is exempt from pre-award synopsis requirements.

Subcontracting Competition. FAR Clause 52.244-5, Competition in Subcontracting is included in the basic contract. Since the Subcontracting Plan is already prevalent on the BPA, it is not required at the TO level. All contract clauses currently contained in the BPA will still be in effect.

7. Actions to Increase Competition: This proposed action is a modification with the incumbent. In the interest of economy and efficiency, it would be neither cost effective nor realistic to expect another contractor to perform during the request for ceiling increase. There are currently twenty EXPRESS BPA holders in the Technical Domain; therefore, no additional actions are currently being taken to increase competition.

8. Market Research: In accordance with FAR 10.002, market research was conducted by the Contracting Officer's Representative for GS-23-F-0321N / W31P4Q-23-F-B0002 and SAMD Non-Standard Missile Systems Division Chief. Market research was conducted on 15 Jan 2025. Both program experience and personal knowledge were used to determine that no other source is capable of mobilizing in time to meet the requirement within the needed timeframe. FAR Part 12 will not be used in this effort; however, in accordance with FAR Part 8.402(a), GSA provides agencies with a simplified process for obtaining commercial supplies and services and the guidelines and clauses are contained in the EXPRESS BPA.

9. Other Facts - Procurement History: The original TO W31P4Q-23-F-B002 was competitively awarded to Torch using a Small Business Set-Aside on 12 January 2023 for a period of a 12-month base period and 4 option years plus extension. This Task Order was awarded as a hybrid Firm Fixed-Price and Time and Material Contract ([REDACTED] labor hours, and a Not to Exceed (NTE) ceiling price of [REDACTED]) as a follow on to W31P4Q-09-A-0021 which was competitively awarded as a small business set aside on 17 September 2015. A ceiling increase was approved on 26 March 2024 in an amount of [REDACTED] for option period 1 (one) which raised the ceiling from [REDACTED] to [REDACTED].

10. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signature: [REDACTED] Date: _____

Typed Name: [REDACTED] Title: Logistics Management Spec

1. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signature: [REDACTED] Date: _____

Typed Name: _____ Title: _____

2. Fair and Reasonable Cost Determination: I hereby determine that the modification to increase the ceiling represents the best value to the Government in accordance with FAR 8.405-6(c)(2)(v). Additionally, I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. Determination of fair and reasonable costs or price will be based on the GSA negotiated rates established under the basic contract awarded as a result of a Small Business Set-aside Competition. Certified cost or pricing data will not be required based on the exception set forth in FAR 15.403-1(b)(3).

Signature: [REDACTED] Date: _____

Typed Name: [REDACTED] Title: Contracting Officer

3. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: [REDACTED] Date: _____

Typed Name: [REDACTED] Title: Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the following ceiling increase of \$ [REDACTED] as described in paragraph 2 above. The estimated increase is for Technical Support Services for SAMD, these services include Product Assurance, Production Engineering, Systems Engineering, Test and Evaluation, Technical Data Management and Product Assurance pursuant to the authority of Title III of the Federal Property and Administrative Services, Act of 1949 (41 U.S.C. 251, et Seq.) and Title 40 U.S.C. 501, Services for Executive Agencies, as implemented by FAR 8.405-6(a)(1)(i)(C), "In the interest of economy and efficiency, the new work is a logical follow-on to an original FSS order provided that the original order was placed in accordance with applicable FSS ordering procedures. The original order or BPA was not previously issued under a sole- source or limited-sources procedures", subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition."

Date: _____ Signature: _____

[REDACTED]
[REDACTED]
Senior Contracting Officer (SCO)
Army Contracting Command-Redstone Arsenal